FINTECHERS PAY

MERCHANT PROCESSING AGREEMENT
MERCHANT APPLICATION (EU)

05 APPLICABLE MERCHANT AGREEMENT

MERCHANT PROCESSING AGREEMENT ("AGREEMENT")

THIS AGREEMENT IS MADE BY AND BETWEEN:

[___], a company registered and existing under the laws of [___], bearing company registration number [___] and having its registered address at [___] (hereinafter: "Merchant", "you", "your"); and

FTP (hereinafter: "FTP ", "we", "us", "our"). Each is a "Party" and together "Parties".

Upon executing this Form, you agree to the Applicable Terms of the Service/s as of the Effective Date.

Capitalized terms that are not defined in this Agreement shall have the meaning given to them in the Applicable Terms.

SERVICE	FTP ENTITY	APPLICABLE TERMS
Acquiring Services	Fintechers Pay Ltd. *	https://fintechers-pay.example/terms https://fintechers-pay.example/card-schemes

**The applicable FTP entity is the entity providing the services to you, depending on your country of incorporation.*

Should you experience any malfunction in connection with the above links, please alert us immediately in writing to support@fintechers-pay.example

GENERAL PROVISIONS

1. **Applicable Terms** means the contractual terms between the Parties for the provision of the Services.
2. **The Agreement** includes the Applicable Terms and Schedules, DPA, and any other relevant policies, guidelines, procedures, rules or conditions that we notify you of, and amend from time to time, as permitted under the Applicable Terms.
3. **Fees.** The applicable Fees for the Service/s are indicated in Schedule 1 attached. **PLEASE NOTE:** without limiting any other rights under this Agreement and in accordance with the amendments clauses of the Agreement, as of the one-year anniversary following the Effective Date of this Agreement, we maintain the right to increase the fees payable by you taking into consideration consumer price inflation and/or the Harmonised Index of Consumer Prices, as relevant.
4. **The Payment Conditions** set out in Schedule 1 and the Operational Details set out in Schedule 2 may be amended following completion of the KYC and financial risk review.
5. **Effective Date.** Notwithstanding the Effective Date defined in the OTC, the Effective Date of this Agreement shall be the date on which the MID(s) are issued to you by us.
6. We will not be obliged to provide the acquiring services if you did not pass the KYC underwriting process. The services are provided by FTP companies. For more information see: ftp.example/licenses
7. **Privacy.** Processing of Personal Data between the Parties is regulated by our DPA, which is a part of this Agreement: Data Processing Addendum - https://fintechers-pay.example/dpa ("DPA").
8. **Interpretation.** In the event of a conflict between the Applicable Terms and Applicable Laws, the Applicable Laws will take precedence, and the Agreement will be interpreted to give as full effect as is possible to both the Applicable Laws and the Agreement.
9. **Governing Law.** This Agreement is governed by the laws of [Malta/England], without regards to its conflict of laws principles, and any dispute arising from this Agreement shall be brought exclusively before the courts of [Malta/London].
10. **Undertakings. By signing this Agreement, you agree that you have read and accepted the Agreement (including any terms in documents referred to in the Applicable Terms). You agree to comply with the Agreement and if you breach the Agreement, we have a right to seek remedies and compensation for certain harms or losses that result from the breach as set out in the Agreement.**
11. The individual signing this Agreement certifies that he/she is an authorized representative of the Merchant and is thereby fully authorized to bind the Merchant to the contractual obligations as defined in this Agreement.

FOR AND ON BEHALF OF

X _____
SIGNATURE

_____ PRINT NAME

_____ TITLE

_____ DATE

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04 PRICING AND TERMS

SCHEDULE 1: PRICING AND TERMS

Acquiring Services: Fees & Terms

The definitions of the fees applied can be found here: https://fintechers-pay.example/fees

Visa, Mastercard

Pricing Model: MDR / Interchange++

PURCHASE		
MERCHANT DISCOUNT RATE		0.000%
APPROVED TRANSACTION FEE		EUR 0.000
ACQUIRER PROCESSING PERCENTAGE CHARGE		0.000 %
ACQUIRER PROCESSING FIXED CHARGE		EUR 0.000
DECLINED TRANSACTION FEE		EUR 0.000
REFUND		
REFUND DISCOUNT RATE		0.000 %
FIXED TRANSACTION FEE		EUR 0.000
CFT *CFT is part of the IC++ pricing and will be charged the appropriate interchange and scheme fees in addition to the below fees.*		
CFT DISCOUNT RATE		0.000 %
FIXED TRANSACTION FEE		EUR 0.000
CHARGEBACKS		
CHARGEBACKS FEES	TIER 1 UP TO 1%	EUR 0.000
	TIER 2 UP TO 1.5% FOR MC OR 2% FOR VISA	EUR 0.000
	TIER 3 OVER 1.5% FOR MC OR 2% FOR VISA	EUR 0.000
REPRESENTMENT FEE		EUR 0.000

The Parties expressly agree that in addition to the Chargeback fees indicated above, we shall charge you 12 EUR for such Visa Chargebacks and 15 EUR for such Mastercard Chargebacks which are subject to additional fees in accordance with the criteria established by the respective Card Scheme. We shall charge you for any additional fees that may be incurred by the Card Schemes with respect to Chargebacks or the handling thereof, including, for example, arbitration and pre-arbitration fees. Chargebacks related Card Schemes fees may be updated from time to time by the respective Card Scheme, without prior notice to you.

SERVICE FEES		
SERVICE FEES	SET-UP (ONE-OFF)	EUR 0.000
	MINIMUM VOLUME FEE BELOW PROCESSING VOLUME THRESHOLD OF EUR 0.000	EUR 0.000
	MONTHLY SERVICE	EUR 0.000
	WIRE TRANSFER	EUR 0.000
ANNUAL REGISTRATION FEES *APPLIES TO MERCHANTS WITH HIGH-RISK MCCS*	MASTERCARD ANNUAL REGISTRATION FEES	USD 500.00
	VISA ANNUAL REGISTRATION FEES	USD 500.00
OTHER AGREED FEES		

NOTE:
Further to the fees specified in this Schedule, the Card Schemes may impose additional fees, or apply changes to the fees with respect to your Transaction/s processing. Any additional Card Scheme fees and/or Adjustments and/or changes imposed will be reflected in your account and appear on your statement. These fees are subject to change by the Card Schemes from time to time. For a list of the fees, please contact your account manager.

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04 | PRICING AND TERMS (CONTD)

SETTLEMENT CONDITIONS	
FREQUENCY OF SETTLEMENT	
FUNDING DELAY DAYS	
TRANSACTION LIMITS	
MAXIMUM TRANSACTION VALUE	EUR 0.00
DAILY MAXIMUM PER CARD	VOLUME:
	AMOUNT:
CURRENCIES	
PRIMARY SETTLEMENT CURRENCY *ALL UNDEFINED PROCESSING CURRENCIES WILL BE CONVERTED TO THE PRIMARY SETTLEMENT CURRENCY.*	EUR

If some or all of the settlement funds are to be converted into a currency other than the one in which they were processed by us prior to settlement to you, then we shall use the Exchange Rate, as defined in the OTC. The Exchange Rate is available upon request.

RESERVES	
ROLLING RESERVE	
FIXED RESERVE	
CAPPED RESERVE	

SCHEDULE 2: OPERATIONAL DETAILS

The selected services are provided to you in accordance with the details listed below.

YOUR BUSINESS CHANNELS

WEBSITE	MCC		DESCRIPTOR	
	VISA	MC	MERCHANT NAME	MERCHANT ADDRESS/ PHONE NUMBER

BANK ACCOUNTS

ACQUIRING SERVICES

SETTLEMENT CURRENCY	BANK	BENEFICIARY NAME	ACCOUNT NUMBER	ROUTING NUMBER	IBAN	SWIFT CODE

04 | APPLICABLE TERMS AND DATA PROTECTION

In terms of applicable data protection laws and regulations, FTP will process the above data and any other data which you (or your Provider) may subsequently give to FTP in any manner or which has been obtained by FTP independently of this application (the "Data"), for the following purposes, namely:

- To be able to process this application and provide its services;
- For due diligence procedures, internal assessment, credit scoring, risk assessment and analysis;
- For the detection and prevention of fraud and other criminal activity which FTP is bound to report;
- To comply with any laws, rules, or regulations imposed on FTP by any relevant authority, regulator or card scheme.
- All notifications related to data privacy will be sent to your Principal Contact unless you have filled out the above form designating a contact for data privacy . If you are connected to FTP through a payment service provider these notifications will be sent to the payment service provider

FTP reserves the right to request additional information/documentation. The completion of this application does not imply acceptance by FTP , which reserves the right at its absolute discretion and without incurring any liability, to decline any application without having to give any reason for so declining.

☐ I/We consent to the processing of data for the purposes specified in this application and consent to the disclosure of the data to employees of FTP , competent authorities or other carefully selected organisations and companies, and have read the Data Privacy Policy which was made available to me/us.

☐ I/We consent to the processing of data for direct marketing, such as to be informed, by mail, telephone, face to face, email or other electronic means, about other services supplied by FTP , its subsidiaries, associates, agents, introducers and by other carefully selected third parties, and for research purposes.

For more details on the information we may collect and your privacy rights, please refer to our privacy policy.

I/we represent that:

- All the information I/we have given in this Application form is true, complete and accurate and properly reflects our business, its shareholders and directors;
- Persons whose personal data is disclosed in this application have provided their explicit consent to such use and processing;
- I/we am/are duly authorised to bind the applicant to the terms of this merchant application form.

X _____

AUTHORIZED SIGNATURE

PRINT NAME _____ TITLE _____ DATE _____

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